

COMMITTEE ON GOVERNMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1501
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 23-491, Arizona Revised Statutes, is amended to
3 read:

4 23-491. Definitions

5 In this article, unless the context otherwise requires:

6 1. "Authorized representative" means the elevator chief and
7 elevator inspector employed by the division.

8 2. "Certificate" means a certificate of inspection issued by the
9 division.

10 3. "Commission" means the industrial commission of Arizona.

11 4. "Conveyance":

12 (a) Means an elevator, dumbwaiter, escalator, moving walk, manlift,
13 personnel hoist, material hoist, stage lift and special purpose personnel
14 elevator. ~~excluding~~

15 (b) DOES NOT INCLUDE conveyances located at mines ~~and~~ THAT ARE
16 subject to regulation and inspection by the state mine inspector pursuant
17 to title 27, chapter 3.

18 5. "Director" means the director of the division ~~of occupational~~
19 ~~safety and health.~~

20 6. "Division" means the division of occupational safety and health
21 of the ~~industrial~~ commission.

22 7. "Dumbwaiter" means a hoisting and lowering mechanism with a car
23 of limited capacity and size that moves in guides in a substantially
24 vertical direction and that is used exclusively for carrying material.

25 8. "Elevator" means a hoisting and lowering mechanism equipped with
26 a car or platform that moves in guides in substantially vertical direction
27 and that serves two or more floors of a building or structure.

28 9. "Elevator company" means a person that is engaged in the
29 business of erecting, constructing, installing, altering, servicing,
30 repairing or maintaining conveyances.

31 10. "ELEVATOR CONTRACTOR" MEANS A PERSON THAT HAS BEEN ISSUED AN
32 ELEVATOR CONTRACTOR'S LICENSE PURSUANT TO TITLE 32, CHAPTER 10 AND THAT
33 EMPLOYS AT LEAST ONE ELEVATOR MECHANIC.

34 11. "ELEVATOR MECHANIC" MEANS A PERSON WHO IS CERTIFIED BY THE
35 STATE BOARD OF TECHNICAL REGISTRATION TO ENGAGE IN ERECTING, CONSTRUCTING,
36 INSTALLING, ALTERING, SERVICING, REPAIRING, TESTING AND MAINTAINING
37 ELEVATORS AND CONVEYANCES.

38 ~~10.~~ 12. "Escalator" means a ~~power-driven~~ POWER-DRIVEN, inclined,
39 continuous stairway used for raising or lowering passengers.

1 ~~11.~~ 13. "Interested party" means the commission and its agents and
2 the owner or operator who has been issued a correction order.

3 ~~12.~~ 14. "Manlift" means a device ~~consisting~~ **THAT CONSISTS** of a
4 ~~power-driven~~ **POWER-DRIVEN** endless belt moving in one direction only and
5 ~~provided with~~ steps or platforms and attached handholds ~~for the~~
6 ~~transportation of~~ **AND THAT TRANSPORTS** personnel from floor to floor.

7 ~~13.~~ 15. "Material hoist":
8 (a) Means a hoist for raising and lowering materials only. ~~and~~
9 ~~prohibiting the hoisting of~~

10 (b) **DOES NOT INCLUDE A HOIST FOR** persons.

11 ~~14.~~ 16. "Moving walk" means a type of passenger carrying device on
12 which passengers stand or walk and in which the passenger carrying surface
13 remains parallel to its direction of motion and is uninterrupted.

14 ~~15.~~ 17. "Owner" or "operator":
15 (a) Means an individual or organization including this state and
16 all political subdivisions of this state ~~who~~ **THAT** has title to, controls
17 or has the duty to control the operation of one or more conveyances. ~~, but~~
18 ~~shall~~

19 (b) **DOES** not include an individual or organization **THAT IS** engaged
20 in mining or metallurgical operations **AND** whose operation is subject to
21 regulation and inspection by the state mine inspector pursuant to title
22 27, chapter 3.

23 ~~16.~~ 18. "Personnel hoist":
24 (a) Means a mechanism ~~for use~~ **THAT IS USED** in connection with the
25 construction, alteration, maintenance or demolition of a building,
26 structure or other work, **THAT IS** used for hoisting and lowering workers
27 and materials and **THAT IS** equipped with a car that moves on guide members
28 during its vertical movement. ~~The term~~

29 (b) Includes a hoistway of a personnel hoist.

30 ~~17.~~ 19. "Private elevator inspector" means an individual who is
31 authorized by the commission under section 23-491.16 to conduct
32 inspections under this article.

33 ~~18.~~ 20. "Special purpose personnel elevator" means a passenger,
34 ~~hand-powered~~ **HAND-POWERED**, counterweighted device or an ~~electric-powered~~
35 **ELECTRIC-POWERED** device that travels vertically in guides and that serves
36 two or more landings.

37 ~~19.~~ 21. "Stage lift" means a hoisting and lowering mechanism
38 equipped with a platform that moves in guides in a substantially vertical
39 direction and that serves one or more landings.

40 Sec. 2. Section 23-491.02, Arizona Revised Statutes, is amended to
41 read:

42 23-491.02. Owners and operators; duties
43 ~~Every~~ **EACH** owner and operator of a conveyance shall:
44 1. Construct, furnish, maintain and provide safe and adequate
45 devices with which to safely and properly convey or move all persons and
46 material ~~utilizing~~ **USING** the services offered by the owner or operator of
47 such ~~device~~ **DEVICES**.

1 2. Comply with all standards and regulations issued pursuant to
2 this article.

3 3. Ensure that ~~a~~ THE conveyance is inspected at all of the
4 following times:

5 (a) Before placing ~~a~~ THE conveyance in operation after the initial
6 installation of the conveyance.

7 (b) After modification or alteration of ~~a~~ THE conveyance.

8 (c) After the inspection pursuant to subdivision (a) OF THIS
9 PARAGRAPH, annually or as otherwise directed by the commission.

10 4. ENSURE THAT THE CONVEYANCE IS INSTALLED, SERVICED OR REPAIRED BY
11 AN ELEVATOR CONTRACTOR OR AN ELEVATOR MECHANIC WHO IS EMPLOYED BY AN
12 ELEVATOR CONTRACTOR PURSUANT TO THE REQUIREMENTS OF THIS ARTICLE AND RULES
13 ADOPTED PURSUANT TO THIS ARTICLE.

14 Sec. 3. Heading changes

15 A. The chapter heading of title 32, chapter 1, Arizona Revised
16 Statutes, is changed from "ARCHITECTS, ENGINEERS, GEOLOGISTS, HOME
17 INSPECTORS, LANDSCAPE ARCHITECTS AND SURVEYORS" to "TECHNICAL
18 PROFESSIONS".

19 B. The article heading of title 32, chapter 1, article 1, Arizona
20 Revised Statutes, is changed from "BOARD OF TECHNICAL REGISTRATION" to
21 "STATE BOARD OF TECHNICAL REGISTRATION".

22 Sec. 4. Section 32-101, Arizona Revised Statutes, is amended to
23 read:

24 32-101. Purpose; definitions

25 A. The purpose of this chapter is to provide for the safety, health
26 and welfare of the public through ~~the promulgation~~ ADOPTING and
27 ~~enforcement of~~ ENFORCING standards of qualification for those individuals
28 who are registered or certified and seeking registration or certification
29 pursuant to this chapter.

30 B. In this chapter, unless the context otherwise requires:

31 1. "Advertising" includes business cards, signs or letterhead
32 provided by a person to the public.

33 2. "Alarm" or "alarm system":

34 (a) Means any mechanical or electrical device that is designed to
35 emit an audible alarm or transmit a signal or message if activated and
36 that is used to detect an unauthorized entry into a building or other
37 facility or alert other persons of the occurrence of a medical emergency
38 or the commission of an unlawful act against a person or in a building or
39 other facility.

40 (b) Includes:

41 (i) A silent, panic, holdup, robbery, duress, burglary, medical
42 alert or proprietor alarm that requires emergency personnel to respond.

43 (ii) A low-voltage electric fence.

44 (c) Does not include a telephone call diverter or a system that is
45 designed to report environmental and other occurrences and that is not
46 designed or used to alert or cause other persons to alert public safety
47 personnel.

1 3. "Alarm agent":

2 (a) Means a person, whether an employee, an independent contractor
3 or otherwise, who acts on behalf of an alarm business and who tests,
4 maintains, services, repairs, sells, rents, leases or installs alarm
5 systems.

6 (b) Does not include ~~any action by~~ a person ~~that~~ WHO:

7 (i) ~~is performed~~ PERFORMS ANY ACTION in connection with an alarm
8 system located on the person's own property or the property of the
9 person's employer.

10 (ii) Is acting on behalf of an alarm business AND whose work duties
11 do not include visiting the location where an alarm system installation
12 occurs.

13 4. "Alarm business":

14 (a) Means any person who, either alone or through a third party,
15 engages in the business of either of the following:

16 (i) Providing alarm monitoring services.

17 (ii) Selling, leasing, renting, maintaining, repairing or
18 installing a nonproprietary alarm system or service.

19 (b) Does not include any of the following:

20 (i) A person or company that purchases, rents or uses an alarm that
21 is affixed to a motor vehicle.

22 (ii) A person who owns or conducts a business of selling, leasing,
23 renting, installing, maintaining or monitoring an alarm that is affixed to
24 a motor vehicle.

25 (iii) A person who installs a nonmonitored proprietor alarm for a
26 business that the person owns, is employed by or manages.

27 (iv) The installation or monitoring of fire alarm systems.

28 (v) An alarm system that is operated by a city or town.

29 5. "Alarm subscriber" means any person who:

30 (a) Leases, rents or purchases any monitored alarm system or
31 service from an alarm business.

32 (b) Leases or rents an alarm system.

33 (c) Contracts with an alarm business for alarm monitoring,
34 installation, repair or maintenance services.

35 6. "Architect" means a person who, by reason of knowledge of the
36 mathematical and physical sciences and the principles of architecture and
37 architectural engineering acquired by professional education and practical
38 experience, is qualified to engage in the practice of architecture and is
39 registered as an architect pursuant to this chapter.

40 7. "Architectural practice" means any professional service or
41 creative work requiring architectural education, training and experience,
42 and the application of the mathematical and physical sciences and the
43 principles of architecture and architectural engineering to such
44 professional services or creative work as consultation, evaluation, design
45 and review of construction for conformance with contract documents and
46 design, in connection with any building, planning or site development.
47 A person is deemed to practice or offer to practice architecture who in

1 any manner represents that the person is an architect or is able to
2 perform any architectural service or other services recognized by
3 educational authorities as architecture.

4 8. "Board" means the state board of technical registration.

5 9. "Controlling person":

6 (a) Means a person who is designated by an alarm business.

7 (b) Does not include an alarm agent.

8 10. "CONVEYANCE" HAS THE SAME MEANING PRESCRIBED IN SECTION 23-491.

9 11. "ELEVATOR" HAS THE SAME MEANING PRESCRIBED IN SECTION 23-491.

10 12. "ELEVATOR CONTRACTOR" MEANS A PERSON THAT HAS BEEN ISSUED AN
11 ELEVATOR CONTRACTOR'S LICENSE PURSUANT TO CHAPTER 10 OF THIS TITLE AND
12 THAT EMPLOYS AT LEAST ONE ELEVATOR MECHANIC.

13 13. "ELEVATOR MECHANIC" MEANS A PERSON WHO IS CERTIFIED BY THE
14 BOARD PURSUANT TO SECTION 32-122.04 TO ENGAGE IN ERECTING, CONSTRUCTING,
15 INSTALLING, ALTERING, SERVICING, REPAIRING, TESTING AND MAINTAINING
16 ELEVATORS AND CONVEYANCES.

17 ~~10.~~ 14. "Engineer" means a person who by reason of engineering
18 education, training and experience may apply engineering principles and
19 interpret engineering data.

20 ~~11.~~ 15. "Engineering practice" means any professional service or
21 creative work requiring engineering education, training and experience in
22 applying engineering principles and interpreting engineering data to
23 engineering activities that clearly impact the health, safety and welfare
24 of the public and the engineering design of buildings, structures,
25 products, machines, processes and systems to the extent that the
26 engineering education, training and experience requirements prescribed by
27 sections 32-122 and 32-122.01 are necessary to protect the health, safety
28 and welfare of the public. The services or creative work may include
29 providing planning services, studies, designs, design coordination,
30 drawings, specifications and other technical submissions, surveying as
31 prescribed in paragraph ~~22~~ 26, subdivisions (d) and (e) of this
32 subsection, and reviewing construction or other design products for the
33 purposes of monitoring compliance with drawings and specifications related
34 to engineered works. A person employed on a full-time basis as an
35 engineer by an employer engaged in the business of developing, mining and
36 treating ores and other minerals ~~shall~~ IS not ~~be~~ deemed to be practicing
37 engineering for the purposes of this chapter if the person engages in the
38 practice of engineering exclusively for and as an employee of such
39 employer and does not represent that the person is available and is not
40 represented as being available to perform any engineering services for
41 persons other than the person's employer. A person is deemed to practice
42 engineering if the person does any of the following:

43 (a) Practices any discipline of the profession of engineering or
44 holds out to the public that the person is able and authorized to practice
45 any discipline of engineering.

1 (b) Represents to the public that the person is a professional
2 engineer by a verbal claim, sign, advertisement, letterhead or card or in
3 any other manner.

4 (c) Uses a title that implies that the person is a professional
5 engineer.

6 ~~12.~~ 16. "Engineer-in-training" means a candidate for registration
7 as a professional engineer who both:

8 (a) Is a graduate in an approved engineering curriculum of four
9 years or more of a school approved by the board or has four years or more
10 of education or experience, or both, in engineering work that meets
11 standards specified by the board in its rules.

12 (b) Has passed the engineer-in-training examination.

13 ~~13.~~ 17. "Firm" means any individual or partnership, corporation or
14 other type of association, including the association of a nonregistrant
15 and a registrant who offers to the public professional services regulated
16 by the board.

17 ~~14.~~ 18. "Geological practice" means any professional service or
18 work requiring geological education, training and experience, and the
19 application of special knowledge of the earth sciences to such
20 professional services as consultation, evaluation of mining properties,
21 petroleum properties and groundwater resources, professional supervision
22 of exploration for mineral natural resources including metallic and
23 nonmetallic ores, petroleum and groundwater, and the geological phases of
24 engineering investigations.

25 ~~15.~~ 19. "Geologist" means a person, who is not required to be a
26 professional engineer, who by reason of special knowledge of the earth
27 sciences and the principles and methods of search for and appraisal of
28 mineral or other natural resources acquired by professional education and
29 practical experience is qualified to practice geology as attested by
30 registration as a professional geologist. A person who is employed on a
31 full-time basis as a geologist by an employer engaged in the business of
32 developing, mining or treating ores and other minerals is not deemed to be
33 engaged in geological practice for the purposes of this chapter if the
34 person engages in geological practice exclusively for and as an employee
35 of such employer and does not represent that the person is available and
36 is not represented as being available to perform any geological services
37 for persons other than the person's employer.

38 ~~16.~~ 20. "Geologist-in-training" means a candidate for registration
39 as a professional geologist who both:

40 (a) Is a graduate of a school approved by the board or has four
41 years or more of education or experience, or both, in geological work that
42 meets standards specified by the board in its rules.

43 (b) Has passed the geologist-in-training examination.

44 ~~17.~~ 21. "Home inspection" means a visual analysis for the purposes
45 of providing a professional opinion of the building, any reasonably
46 accessible installed components and the operation of the building's

1 systems, including the controls normally operated by the owner, for the
2 following components of a residential building of four units or less:

- 3 (a) Heating system.
- 4 (b) Cooling system.
- 5 (c) Plumbing system.
- 6 (d) Electrical system.
- 7 (e) Structural components.
- 8 (f) Foundation.
- 9 (g) Roof covering.
- 10 (h) Exterior and interior components.
- 11 (i) Site aspects as they affect the building.
- 12 (j) Pursuant to rules adopted by the board, swimming pool and spa.

13 ~~18.~~ 22. "Home inspection report" means a written report that is
14 prepared for compensation, that is issued after a home inspection and that
15 clearly describes and identifies the inspected systems, structures and
16 components of a completed dwelling and any visible major defects found to
17 be in need of immediate major repair and any recommendations for
18 additional evaluation by appropriate persons.

19 ~~19.~~ 23. "Home inspector" means an individual who is certified
20 pursuant to this chapter as a home inspector and who engages in the
21 business of performing home inspections and writing home inspection
22 reports.

23 ~~20.~~ 24. "Landscape architect" means a person who, by reason of
24 professional education or practical experience, or both, is qualified to
25 engage in the practice of landscape architecture as attested by
26 registration as a landscape architect.

27 ~~21.~~ 25. "Landscape architectural practice":

28 (a) Means performing professional services such as consultations,
29 investigation, reconnaissance, research, planning, design or responsible
30 supervision in connection with the development of land and incidental
31 water areas where, and to the extent that, the dominant purpose of such
32 services is the preservation, enhancement or determination of proper land
33 uses, natural land features, ground cover and planting, naturalistic and
34 aesthetic values, the settings of and approaches to buildings, structures,
35 facilities or other improvements, natural drainage and the consideration
36 and the determination of inherent problems of the land relating to
37 erosion, wear and tear, light or other hazards.

38 (b) Includes locating and arranging such tangible objects and
39 features as are incidental and necessary to the purposes outlined in this
40 paragraph.

41 (c) Does not include making cadastral surveys or final land plats
42 for official recording or approval, nor mandatorily include planning for
43 governmental subdivisions.

44 ~~22.~~ 26. "Land surveying practice" means performing one or more of
45 the following professional services:

1 (a) Measuring land to determine the position of any monument or
2 reference point that marks a property line, boundary or corner for the
3 purpose of determining the area or description of the land.

4 (b) Locating, relocating, establishing, reestablishing, setting,
5 resetting or replacing ~~of~~ corner monuments or reference points that
6 identify land boundaries, rights-of-way or easements.

7 (c) Platting or plotting of lands for the purpose of subdividing.

8 (d) Measuring by angles, distances and elevations natural or
9 artificial features in the air, on the surface and immediate subsurface of
10 the earth, within underground workings and on the surface or within bodies
11 of water for the purpose of determining or establishing their location,
12 size, shape, topography, grades, contours or water surface and depths, and
13 ~~the~~ preparing and perpetuating field note records and maps depicting these
14 features.

15 (e) Setting, resetting or replacing points to guide the location of
16 new construction.

17 ~~23.~~ 27. "Land surveyor" means a person who by reason of knowledge
18 of the mathematical and physical sciences, principles of land surveying
19 and evidence gathering acquired by professional education or practical
20 experience, or both, is qualified to practice land surveying as attested
21 by registration as a land surveyor. A person employed on a full-time
22 basis as a land surveyor by an employer engaged in the business of
23 developing, mining or treating ores or other minerals is not deemed to be
24 engaged in land surveying practice for purposes of this chapter if the
25 person engages in land surveying practice exclusively for and as an
26 employee of such employer and does not represent that the person is
27 available and is not represented as being available to perform any land
28 surveying services for persons other than the person's employer.

29 ~~24.~~ 28. "Land surveyor-in-training" means a candidate for
30 registration as a professional land surveyor who both:

31 (a) Is a graduate of a school and curriculum approved by the board
32 or has four years or more of education or experience, or both, in land
33 surveying work that meets standards specified by the board in its rules.

34 (b) Has passed the land surveyor-in-training examination.

35 ~~25.~~ 29. "Low-voltage electric fence" means a fence that meets all
36 of the following requirements:

37 (a) Has an electric fence energizer that is powered by a commercial
38 storage battery with a rated voltage of not more than twelve volts and
39 that produces an electric charge on contact with the fence.

40 (b) Is completely enclosed by a nonelectric fence or wall.

41 (c) Is continuously monitored.

42 (d) Is attached to ancillary components or equipment such as closed
43 circuit television systems, access controls, battery recharging devices
44 and video cameras.

45 (e) Does not exceed ten feet in height or two feet higher than the
46 nonelectric fence or wall described in subdivision (b) of this paragraph,
47 whichever is higher.

1 (f) Has identification warning signs attached at intervals of not
2 more than sixty feet.

3 (g) Is not installed in an area zoned exclusively for single family
4 or multifamily residential use.

5 (h) Does not enclose property that is used for residential
6 purposes.

7 ~~26.~~ 30. "Monitored alarm" means a device that is designed to
8 detect an entry on any premises and that if activated generates a
9 notification signal.

10 ~~27.~~ 31. "Person" means any individual, firm, partnership,
11 corporation, association or other organization.

12 ~~28.~~ 32. "Principal" means an individual who is an officer of the
13 corporation or is designated by a firm as having full authority and
14 responsible charge of the services offered by the firm.

15 ~~29.~~ 33. "Professional engineer" means a person who, by reason of
16 special knowledge of the mathematical and physical sciences and the
17 principles and methods of engineering analysis and design acquired by
18 professional education and practical experience, is qualified to practice
19 engineering and is registered as a professional engineer pursuant to this
20 chapter.

21 ~~30.~~ 34. "Proprietor alarm" means any alarm or alarm system that is
22 owned by an alarm subscriber who has not contracted with an alarm
23 business.

24 ~~31.~~ 35. "Registrant" means a person who is registered or certified
25 by the board.

26 ~~32.~~ 36. "Registration" means a registration or certification that
27 is issued by the board.

28 Sec. 5. Section 32-102, Arizona Revised Statutes, is amended to
29 read:

30 32-102. State board of technical registration; members;
31 vacancies; terms

32 A. The state board of technical registration is established
33 consisting of members who are appointed by the governor as follows:

34 1. ~~One architect~~ TWO ARCHITECTS.

35 2. ~~One~~ TWO professional ~~engineer~~ ENGINEERS.

36 3. ~~Six~~ THREE public members, at least one of whom has a legal,
37 construction or design product background.

38 4. One landscape architect.

39 5. One geologist.

40 6. One land surveyor.

41 7. ONE ELEVATOR MECHANIC.

42 8. ONE HOME INSPECTOR.

43 9. ONE ALARM BUSINESS CONTROLLING PERSON.

44 B. On the expiration of any of the terms, a successor who is
45 qualified pursuant to subsection A of this section shall be appointed for
46 a full term of three years. The governor may remove a member of the board
47 for misconduct, incapacity or neglect of duty. Appointment to fill a

1 vacancy caused other than by expiration of term shall be for the unexpired
2 portion of the term.

3 C. A member may not serve more than two consecutive terms.

4 Sec. 6. Title 32, chapter 1, article 1, Arizona Revised Statutes,
5 is amended by adding section 32-111, to read:

6 32-111. Elevator mechanics safety and standards committee;
7 members; duties; rules; compensation

8 A. THE ELEVATOR MECHANICS SAFETY AND STANDARDS COMMITTEE OF THE
9 STATE BOARD OF TECHNICAL REGISTRATION IS ESTABLISHED AND CONSISTS OF:

10 1. ONE QUALIFIED ELEVATOR INSPECTOR WHO HOLDS A CURRENT QUALIFIED
11 ELEVATOR INSPECTOR CREDENTIAL ISSUED BY AN ACCREDITATION ENTITY RECOGNIZED
12 UNDER THE AMERICAN SOCIETY OF MECHANICAL ENGINEERS QEI-1 STANDARD AND WHO
13 IS APPOINTED BY THE BOARD FOR A THREE-YEAR TERM.

14 2. ONE REPRESENTATIVE OF AN ELEVATOR EQUIPMENT MANUFACTURER TRADE
15 ORGANIZATION WHO IS APPOINTED BY THE BOARD FOR A THREE-YEAR TERM. THE
16 BOARD SHALL SELECT THIS MEMBER FROM A LIST OF NAMES SUBMITTED TO THE BOARD
17 BY AT LEAST ONE ELEVATOR SERVICE COMPANY OR STATEWIDE ELEVATOR INDUSTRY
18 ASSOCIATION ORGANIZATION.

19 3. ONE REPRESENTATIVE OF AN ELEVATOR SERVICE COMPANY WHO IS
20 APPOINTED BY THE BOARD FOR A THREE-YEAR TERM. THE BOARD SHALL SELECT THIS
21 MEMBER FROM A LIST OF NAMES SUBMITTED TO THE BOARD BY AT LEAST ONE
22 ELEVATOR SERVICE COMPANY OR STATEWIDE ELEVATOR INDUSTRY ASSOCIATION.

23 4. ONE CERTIFIED ELEVATOR MECHANIC WHO IS APPOINTED BY THE BOARD TO
24 SERVE A THREE-YEAR TERM, WHO HOLDS AN ACTIVE CERTIFICATION AND WHO HAS AT
25 LEAST FIVE YEARS OF EXPERIENCE AS AN ELEVATOR MECHANIC.

26 5. TWO MEMBERS OF THE BOARD WHO ARE APPOINTED BY THE CHAIRPERSON OF
27 THE BOARD AND WHO SERVE STAGGERED THREE-YEAR TERMS.

28 6. ONE FIRE SAFETY PROFESSIONAL.

29 B. THE COMMITTEE IS RESPONSIBLE FOR DRAFTING RULES AND PROVIDING
30 RECOMMENDATIONS TO THE BOARD THAT DEFINE THE CONDUCT OF ELEVATOR MECHANICS
31 AND SUCH OTHER RULES AND STANDARDS RELATED TO THE ELEVATOR MECHANIC
32 PROFESSION.

33 C. THE COMMITTEE MAY PARTICIPATE IN:

34 1. THE INVESTIGATION AND REVIEW OF ELEVATOR MECHANIC COMPLAINTS AS
35 PROVIDED BY THE BOARD.

36 2. THE REVIEW AND EVALUATION OF ELEVATOR MECHANIC APPLICATIONS AS
37 PROVIDED BY THE BOARD.

38 D. MEMBERS OF THE ELEVATOR MECHANICS SAFETY AND STANDARDS COMMITTEE
39 ARE ELIGIBLE TO RECEIVE COMPENSATION PURSUANT TO TITLE 38, CHAPTER 4,
40 ARTICLE 1.

41 Sec. 7. Title 32, chapter 1, article 2, Arizona Revised Statutes,
42 is amended by adding section 32-122.04, to read:

43 32-122.04. Certification of elevator mechanics;
44 qualifications; temporary certification; annual
45 safety updates

46 A. A PERSON MUST BE CERTIFIED AS AN ELEVATOR MECHANIC PURSUANT TO
47 THIS ARTICLE AND WORK UNDER THE DIRECT SUPERVISION OF A QUALIFYING PARTY

1 LICENSED PURSUANT TO CHAPTER 10 OF THIS TITLE TO WORK ON CONVEYANCES AND
2 ELEVATORS IN THIS STATE. A CERTIFIED ELEVATOR MECHANIC SHALL PERFORM ALL
3 WORK ON ELEVATORS AND CONVEYANCES IN COMPLIANCE WITH APPLICABLE ELEVATOR
4 SAFETY STANDARDS AND INSPECTION REQUIREMENTS ADOPTED PURSUANT TO TITLE 23,
5 CHAPTER 2, ARTICLE 12.

6 B. A PERSON WHO WISHES TO BE CERTIFIED AS AN ELEVATOR MECHANIC
7 SHALL MEET BOTH OF THE FOLLOWING:

8 1. HAVE COMPLETED A DEPARTMENT OF ECONOMIC SECURITY OR UNITED
9 STATES DEPARTMENT OF LABOR APPRENTICESHIP PROGRAM WITH EIGHT THOUSAND
10 HOURS OF ON-THE-JOB TRAINING AND FIVE HUNDRED SEVENTY-SIX HOURS OF
11 CLASSROOM INSTRUCTION TO ENGAGE IN ERECTING, CONSTRUCTING, INSTALLING,
12 ALTERING, SERVICING, REPAIRING, TESTING OR MAINTAINING ELEVATORS AND
13 CONVEYANCES.

14 2. PASS THE ELEVATOR MECHANIC EXAMINATION AS APPROVED BY THE BOARD.

15 C. NOTWITHSTANDING SUBSECTION B OF THIS SECTION, FOR ONE YEAR AFTER
16 THE EFFECTIVE DATE OF THIS SECTION, THE BOARD MAY ISSUE AN ELEVATOR
17 MECHANIC CERTIFICATE TO AN APPLICANT WHO PAYS THE FEE REQUIRED BY THE
18 BOARD AND SUBMITS AN APPLICATION WITH DOCUMENTATION FROM A PRIMARY SOURCE
19 THAT DEMONSTRATES THE APPLICANT HAS WORKED AS AN ELEVATOR MECHANIC WITHOUT
20 SUPERVISION FOR AT LEAST EIGHT THOUSAND HOURS WITHIN THE PREVIOUS SIX
21 YEARS.

22 D. IF THE BOARD DETERMINES THAT AN ELEVATOR CONTRACTOR ENCOUNTERS A
23 VERIFIABLE SHORTAGE OF CERTIFIED ELEVATOR MECHANICS, THE BOARD MAY ISSUE A
24 TEMPORARY ELEVATOR MECHANIC CERTIFICATE TO AN ELEVATOR APPRENTICE WHO CAN
25 PROVIDE DOCUMENTATION FROM A PRIMARY SOURCE DEMONSTRATING THAT THE
26 APPRENTICE IS CURRENTLY ENROLLED IN AN ELEVATOR APPRENTICESHIP PROGRAM AND
27 HAS COMPLETED A MINIMUM OF FOUR THOUSAND HOURS OF ELEVATOR INDUSTRY
28 EXPERIENCE. TEMPORARY ELEVATOR MECHANIC CERTIFICATION PURSUANT TO THIS
29 SUBSECTION MAY BE ACTIVE NOT LONGER THAN SIX MONTHS, EXCEPT THAT THE BOARD
30 MAY EXTEND A TEMPORARY CERTIFICATION FOR AN ADDITIONAL SIX MONTHS IF THE
31 BOARD DETERMINES THAT THE VERIFIABLE SHORTAGE OF CERTIFIED ELEVATOR
32 MECHANICS STILL EXISTS AND THE ELEVATOR MECHANIC RECEIVING TEMPORARY
33 CERTIFICATION REMAINS EMPLOYED BY THE REQUESTING ELEVATOR CONTRACTOR.

34 E. WHEN RENEWING AN ELEVATOR MECHANIC CERTIFICATION, THE BOARD
35 SHALL REQUIRE EACH CERTIFIED ELEVATOR MECHANIC TO HAVE AT LEAST EIGHT
36 HOURS OF ANNUAL TECHNICAL SAFETY UPDATES APPROVED BY THE BOARD.

37 F. THIS SECTION DOES NOT REQUIRE A PERSON TO BE AN ELEVATOR
38 MECHANIC OR ELEVATOR CONTRACTOR IN ORDER TO PERFORM NONMECHANICAL
39 MAINTENANCE OF AN ELEVATOR. FOR THE PURPOSES OF THIS SUBSECTION,
40 "NONMECHANICAL MAINTENANCE OF AN ELEVATOR" MEANS ANY MAINTENANCE ON THE
41 INTERIOR OF THE CAR OF AN ELEVATOR THAT DOES NOT REQUIRE ACCESS TO THE
42 PIT, HOISTWAY, CONTROL PANEL OR TOP OF THE CAR.

43 Sec. 8. Section 32-1101, Arizona Revised Statutes, is amended to
44 read:

45 32-1101. Definitions

46 A. In this chapter, unless the context otherwise requires:

47 1. "Advertisement":

1 (a) Means any written or oral publication, dissemination,
2 solicitation or circulation that is intended to directly or indirectly
3 induce any person to enter into an agreement for contracting services with
4 a contractor. ~~, including~~

5 (b) INCLUDES business cards and telephone directory display
6 advertisements.

7 2. "Commercial contractor" is synonymous with the terms "commercial
8 builder", "industrial builder" and "public works builder" and means any
9 person, firm, partnership, corporation, association or other organization,
10 or a combination of any of them, that, for compensation, undertakes to or
11 offers to undertake to, purports to have the capacity to undertake to,
12 submits a bid or responds to a request for qualification or a request for
13 proposals for construction services to, does himself or by or through
14 others, or directly or indirectly supervises others, except within
15 residential property lines, to:

16 (a) Construct, alter, repair, add to, subtract from, improve, move,
17 wreck or demolish any building, highway, road, railroad, excavation or
18 other structure, project, development or improvement, or to do any part
19 thereof, including the erection of scaffolding or any other structure or
20 work in connection with the construction.

21 (b) Connect such a structure or improvements to utility service
22 lines and metering devices and the sewer line.

23 (c) Provide mechanical or structural service for any such structure
24 or improvements.

25 3. "Contractor":

26 (a) Is synonymous with the term "builder" and means any person,
27 firm, partnership, corporation, association or other organization, or a
28 combination of any of them, that, for compensation, undertakes to or
29 offers to undertake to, purports to have the capacity to undertake to,
30 submits a bid or responds to a request for qualification or a request for
31 proposals for construction services to, does himself or by or through
32 others, or directly or indirectly supervises others to:

33 (i) Construct, alter, repair, add to, subtract from, improve, move,
34 wreck or demolish any building, highway, road, railroad, excavation or
35 other structure, project, development or improvement, or to do any part
36 thereof, including the erection of scaffolding or any other structure or
37 work in connection with the construction.

38 (ii) Connect such a structure or improvements to utility service
39 lines and metering devices and the sewer line.

40 (iii) Provide mechanical or structural service for any such
41 structure or improvements.

42 (b) Includes subcontractors, specialty contractors, floor covering
43 contractors, hardscape contractors and consultants who represent that they
44 are able to supervise or manage a construction project for the property
45 owner's benefit, including hiring and firing specialty contractors,
46 scheduling work on the project and selecting and purchasing construction
47 material.

1 4. "CONVEYANCE" HAS THE SAME MEANING PRESCRIBED IN SECTION 23-491.
2 ~~4.~~ 5. "Dual licensed contractor" is synonymous with the term
3 "commercial and residential builder" and means any person, firm,
4 partnership, corporation, association or other organization, or a
5 combination of any of them, that for compensation undertakes to or offers
6 to undertake to, purports to have the capacity to undertake to, submits a
7 bid or responds to a request for qualification or a request for proposals
8 for construction services to, does himself or by or through others, or
9 directly or indirectly supervises others under a single license on
10 commercial or residential property to:
11 (a) Construct, alter, repair, add to, subtract from, improve, move,
12 wreck or demolish any building, excavation or other structure or
13 improvement, including any appurtenances, or to do any part thereof.
14 (b) Connect such a structure or improvements to utility service
15 lines and metering devices and the sewer line.
16 (c) Provide mechanical or structural service for any such structure
17 or improvements.
18 6. "ELEVATOR" HAS THE SAME MEANING PRESCRIBED IN SECTION 23-491.
19 7. "ELEVATOR CONTRACTOR" MEANS A PERSON THAT HAS BEEN ISSUED AN
20 ELEVATOR CONTRACTOR'S LICENSE PURSUANT TO THIS CHAPTER AND THAT EMPLOYS AT
21 LEAST ONE ELEVATOR MECHANIC.
22 8. "ELEVATOR MECHANIC" MEANS A PERSON WHO IS CERTIFIED PURSUANT TO
23 SECTION 32-122.04 AND RULES ADOPTED BY THE STATE BOARD OF TECHNICAL
24 REGISTRATION TO ENGAGE IN ERECTING, CONSTRUCTING, INSTALLING, ALTERING,
25 SERVICING, REPAIRING, TESTING AND MAINTAINING ELEVATORS AND CONVEYANCES.
26 ~~5.~~ 9. "License" means an authorization for the person who is
27 listed on the electronic, paper or other records maintained by the
28 registrar to act in the capacity of a contractor.
29 ~~6.~~ 10. "Named on a license" means ~~required to be~~ identified AS
30 REQUIRED pursuant to section 32-1122, subsection B.
31 ~~7.~~ 11. "Person" means a corporation, company, partnership, firm,
32 association, trust, society or natural person.
33 ~~8.~~ 12. "Qualifying party" means a person who is responsible for a
34 licensee's actions and conduct performed under the license and who either:
35 (a) Has an ownership interest in the license.
36 (b) Is regularly employed by the licensee.
37 ~~9.~~ 13. "Registrar" means the registrar of contractors.
38 ~~10.~~ 14. "Residential contractor":
39 (a) Is synonymous with the term "residential builder" and means any
40 person, firm, partnership, corporation, association or other organization,
41 or a combination of any of them, that for compensation undertakes to or
42 offers to undertake to, purports to have the capacity to undertake to,
43 submits a bid or responds to a request for qualification or a request for
44 proposals for construction services to, or does himself or by or through
45 others, within residential property lines:
46 (i) Construct, alter, repair, add to, subtract from, improve, move,
47 wreck or demolish any residential structure, such as houses, townhouses,

1 condominiums or cooperative units and any appurtenances on or within
2 residential property lines.

3 (ii) Connect such a residential structure to utility service lines,
4 metering devices or sewer lines.

5 (iii) Provide mechanical or structural service for any such
6 residential structure.

7 (b) Does not include an owner making improvements to the owner's
8 property pursuant to section 32-1121, subsection A, paragraph 5.

9 B. Only contractors as defined in this section are licensed and
10 regulated by this chapter.

11 Sec. 9. Section 32-1121, Arizona Revised Statutes, as amended by
12 Laws 2019, chapter 140, section 1, is amended to read:

13 32-1121. Persons not required to be licensed; penalties;
14 applicability

15 A. This chapter does not apply to:

16 1. An authorized representative of the United States government,
17 this state or any county, incorporated city or town, reclamation district,
18 irrigation district or other municipality or political subdivision of this
19 state.

20 2. Trustees of an express trust that is not formed for the purpose
21 of conducting business as a contractor or officers of a court, if they are
22 acting within the terms of their trust or office.

23 3. Public utilities operating under regulation of the corporation
24 commission or construction, repair or operation incidental to discovering
25 or producing petroleum or gas, or drilling, testing, abandoning or
26 otherwise operating a petroleum or gas well, if performed by an owner or
27 lessee.

28 4. Any materialman, manufacturer or retailer that furnishes
29 finished products, materials or articles of merchandise and that does not
30 install or attach such items or installs or attaches such items if the
31 total value of the sales contract or transaction involving such items and
32 the cost of the installation or attachment of such items to a structure
33 does not exceed \$1,000, including labor, materials and all other items,
34 but excluding any electrical fixture or appliance that was designed by the
35 manufacturer, that is unaltered, unchanged or unmodified by any person,
36 that can be plugged into a common household electrical outlet using a
37 two-pronged or three-pronged electrical connector or that has internal
38 batteries that do not exceed twelve volts in a single, series or parallel
39 configuration and that does not use any other form of energy, including
40 natural gas, propane or other petroleum or gaseous fuel, to operate or is
41 attached by a nail, screw or other fastening device to the frame or
42 foundation of any residential structure. The materialman, manufacturer or
43 retailer shall inform the purchaser that the installation may also be
44 performed by a licensed contractor whose name and address the purchaser
45 may request.

46 5. Owners of property who improve such property or who build or
47 improve structures or appurtenances on such property and who do the work

1 themselves, with their own employees or with duly licensed contractors, if
2 the structure, group of structures or appurtenances, including the
3 improvements thereto, are intended for occupancy solely by the owner and
4 are not intended for occupancy by members of the public as the owner's
5 employees or business visitors and the structures or appurtenances are not
6 intended for sale or for rent. In all actions brought under this chapter,
7 except an action against an owner-occupant as defined in section 33-1002,
8 proof of the sale or rent or the offering for sale or rent of any such
9 structure by the owner-builder within one year after completion or
10 issuance of a certificate of occupancy is prima facie evidence that such a
11 project was undertaken for the purpose of sale or rent. For the purposes
12 of this paragraph, "sale" or "rent" includes any arrangement by which the
13 owner receives compensation in money, provisions, chattels or labor from
14 the occupancy or the transfer of the property or the structures on the
15 property.

16 6. Owners of property who are acting as developers and who build
17 structures or appurtenances to structures on their property for the
18 purpose of sale or rent and who contract for such a project with a general
19 contractor licensed pursuant to this chapter and owners of property who
20 are acting as developers, who improve structures or appurtenances to
21 structures on their property for the purpose of sale or rent and who
22 contract for such a project with a general contractor or specialty
23 contractors licensed pursuant to this chapter. To qualify for the
24 exemption under this paragraph, the licensed contractors' names and
25 license numbers shall be included in all sales documents.

26 7. Architects or engineers who are engaging in their professional
27 practice as defined in chapter 1 of this title and who hire or offer to
28 hire the services of a contractor for preconstruction activities relating
29 to investigation and discovery, including:

30 (a) Subsurface utility location and designation services.

31 (b) Potholing.

32 (c) Drilling for any of the following:

33 (i) Soil samples.

34 (ii) Rock samples.

35 (iii) Pavement samples.

36 (d) Locating existing features of a building or structure,
37 including existing electrical, mechanical, plumbing and structural
38 members.

39 8. A person licensed, certified or registered pursuant to title 3,
40 chapter 20 or a person working under the direct supervision of a person
41 certified or qualified pursuant to title 3, chapter 20 to the extent the
42 person is engaged in pest management.

43 9. The sale or installation of finished products, materials or
44 articles of merchandise that are not fabricated into and do not become a
45 permanent fixed part of the structure. This exemption does not apply if a
46 local building permit is required, if the total price of the finished
47 product, material or article of merchandise, including labor but excluding

1 any electrical fixture or appliance that was designed by the manufacturer,
2 that is unaltered, unchanged or unmodified by any person, that can be
3 plugged into a common household electrical outlet using a two-pronged or
4 three-pronged electrical connector or that has internal batteries that do
5 not exceed twelve volts in a single, series or parallel configuration and
6 that does not use any other form of energy, including natural gas, propane
7 or other petroleum or gaseous fuel, to operate or is attached by a nail,
8 screw or other fastening device to the frame or foundation of any
9 residential structure, is more than \$1,000 or if the removal of the
10 finished product, material or article of merchandise causes material
11 damage to the structure or renders the structure unfit for its intended
12 use.

13 10. Employees of the owners of condominiums, townhouses, cooperative
14 units or apartment complexes of four units or less or the owners'
15 management agent or employees of the management agent repairing or
16 maintaining structures owned by them.

17 11. Any person who engages in the activities regulated by this
18 chapter, as an employee of an exempt property owner or as an employee with
19 wages as the person's sole compensation.

20 12. A surety company or companies that are authorized to transact
21 business in this state and that undertake to complete a contract on which
22 they issued a performance or completion bond if all construction work is
23 performed by duly licensed contractors.

24 13. Insurance companies that are authorized to transact business in
25 this state and that undertake to perform repairs resulting from casualty
26 losses pursuant to the provisions of a policy if all construction work is
27 performed by duly licensed contractors.

28 14. Any person other than a licensed contractor engaging in any work
29 or operation on one undertaking or project by one or more contracts, for
30 which the aggregate contract price, including labor, materials and all
31 other items, but excluding any electrical fixture or appliance that was
32 designed by the manufacturer, that is unaltered, unchanged or unmodified
33 by any person, that can be plugged into a common household electrical
34 outlet using a two-pronged or three-pronged electrical connector or that
35 has internal batteries that do not exceed twelve volts in a single, series
36 or parallel configuration and that does not use any other form of energy,
37 including natural gas, propane or other petroleum or gaseous fuel, to
38 operate or is attached by a nail, screw or other fastening device to the
39 frame or foundation of any residential structure, is less than \$1,000.
40 The work or operations that are exempt under this paragraph shall be of a
41 casual or minor nature. This exemption does not apply:

42 (a) In any case in which the performance of the work requires a
43 local building permit.

44 (b) In any case in which the work or construction is only a part of
45 a larger or major operation, whether undertaken by the same or a different
46 contractor, or in which a division of the operation is made in contracts
47 of amounts less than \$1,000, excluding any electrical fixture or appliance

1 that was designed by the manufacturer, that is unaltered, unchanged or
2 unmodified by any person, that can be plugged into a common household
3 electrical outlet using a two-pronged or three-pronged electrical
4 connector or that has internal batteries that do not exceed twelve volts
5 in a single, series or parallel configuration and that does not use any
6 other form of energy, including natural gas, propane or other petroleum or
7 gaseous fuel, to operate or is attached by a nail, screw or other
8 fastening device to the frame or foundation of any residential structure,
9 for the purpose of evasion of this chapter or otherwise.

10 (c) To a person who uses any form of advertising to the public in
11 which the person's unlicensed status is not disclosed by including the
12 words "not a licensed contractor" in the advertisement.

13 15. A person who is licensed, certified or registered pursuant to
14 title 41, chapter 37, article 4 and who is not otherwise required to be
15 licensed under this chapter or an employee of such person.

16 16. A person who functions as a gardener by performing lawn, garden,
17 shrub and tree maintenance.

18 17. Alarm agents as defined in section 32-101.

19 18. Cable television, satellite television and telecommunications
20 providers, including data and related services of cable television,
21 satellite television and telecommunications providers including
22 contractors and subcontractors of cable television, satellite television
23 and telecommunications providers if the work of the contractors and
24 subcontractors is limited to installing low-voltage cable, telephone
25 services, internet services and data service. ~~Installation~~ **INSTALLING**
26 does not include digging, trenching, grading, horizontal boring,
27 compacting or filling earthen or other material before the service drop of
28 the commercial or residential structure.

29 B. A person who is licensed to perform work in a particular trade
30 pursuant to this chapter is not required to obtain and maintain a separate
31 license for mechanical or structural service work the person performs
32 within the scope of that trade.

33 C. Any person who does not have an exemption from licensure
34 pursuant to subsection A, paragraph 14, subdivision (c) of this section is
35 subject to prosecution for a violation of section 44-1522. The attorney
36 general may investigate the act or practice and take appropriate action
37 pursuant to title 44, chapter 10, article 7.

38 D. The exemptions from licensure pursuant to subsection A,
39 paragraphs 4, 9 and 14 of this section do not apply to ~~either~~ **ANY** of the
40 following:

41 1. All fire safety and mechanical, electrical and plumbing work
42 that is done in connection with fire safety installation and fire safety
43 maintenance and repair. For the purposes of this paragraph, "fire safety
44 installation" means hardwired or interconnected smoke alarms and fire
45 sprinklers and does not include an individual device that is attached by a
46 nail, screw or other fastening device to the frame or foundation of any
47 residential unit. For the purposes of this paragraph, fire safety

1 maintenance and repair does not include routine work that is conducted by
2 an employee of an apartment or condominium complex and that is incidental
3 to the fire safety equipment.

4 2. All work done, including installing, maintaining and repairing
5 devices, appliances or equipment, that involves connecting to any supply
6 of natural gas, propane or other petroleum or gaseous fuel. This
7 paragraph does not impact the effect of section 36-1624.01.

8 3. ALL WORK DONE BY AN ELEVATOR CONTRACTOR OR ELEVATOR MECHANIC,
9 INCLUDING THE INSTALLATION, SERVICE, TESTING AND REPAIR OF ELEVATORS AND
10 ELEVATOR EQUIPMENT. THE INSTALLATION, SERVICE, TESTING AND REPAIR OF
11 ELEVATORS AND ELEVATOR EQUIPMENT DOES NOT INCLUDE ROUTINE WORK THAT IS
12 CONDUCTED BY AN EMPLOYEE OF AN ELEVATOR CONTRACTOR AND THAT DOES NOT
13 INVOLVE THE ACTUAL PHYSICAL INSTALLATION, MAINTENANCE, TESTING OR REPAIR
14 OF ELEVATORS OR ELEVATOR EQUIPMENT.

15 Sec. 10. Section 32-1121, Arizona Revised Statutes, as amended by
16 Laws 2019, chapter 145, section 5, is amended to read:

17 32-1121. Persons not required to be licensed; penalties;
18 applicability

19 A. This chapter does not apply to:

20 1. An authorized representative of the United States government,
21 this state or any county, incorporated city or town, reclamation district,
22 irrigation district or other municipality or political subdivision of this
23 state.

24 2. Officers of a court or trustees of an express trust that is not
25 formed for the purpose of conducting business as a contractor, if they are
26 acting within the terms of their office or trust.

27 3. Public utilities operating under regulation of the corporation
28 commission or construction, repair or operation incidental to discovering
29 or producing petroleum or gas, or the drilling, testing, abandoning or
30 other operation of a petroleum or gas well, if performed by an owner or
31 lessee.

32 4. Except as provided in subsection D of this section, any
33 materialman, manufacturer or retailer who informs the purchaser that the
34 installation may also be performed by a licensed contractor whose name and
35 address the purchaser may request, ~~and~~ who furnishes finished products,
36 materials or articles of merchandise and who EITHER:

37 (a) Does not install or attach such items.

38 (b) Installs or attaches such items if the total value of the sales
39 contract or transaction involving such items and the cost of the
40 installation or attachment of such items to a structure does not exceed
41 \$1,000, including labor, materials and all other items, but excluding any
42 electrical fixture or appliance that meets all of the following:

43 (i) Was designed by the manufacturer.

44 (ii) Is unaltered, unchanged or unmodified by any person.

45 (iii) Can be plugged into a common electrical outlet.

46 5. Owners of property who improve such property or who build or
47 improve structures or appurtenances on such property and who do the work

1 themselves, with their own employees or with duly licensed contractors, if
2 the structure, group of structures or appurtenances, including the
3 improvements thereto, are intended for occupancy solely by the owner and
4 are not intended for occupancy by members of the public as the owner's
5 employees or business visitors and the structures or appurtenances are not
6 intended for sale or for rent. In all actions brought under this chapter,
7 except an action against an owner-occupant as defined in section 33-1002,
8 proof of the sale or rent or the offering for sale or rent of any such
9 structure by the owner-builder within one year after completion or
10 issuance of a certificate of occupancy is prima facie evidence that such
11 project was undertaken for the purpose of sale or rent. For the purposes
12 of this paragraph, "sale" or "rent" includes any arrangement by which the
13 owner receives compensation in money, provisions, chattels or labor from
14 the occupancy or the transfer of the property or the structures on the
15 property.

16 6. Owners of property who are acting as developers and who build
17 structures or appurtenances to structures on their property for the
18 purpose of sale or rent and who contract for such a project with a general
19 contractor licensed pursuant to this chapter and owners of property who
20 are acting as developers, who improve structures or appurtenances to
21 structures on their property for the purpose of sale or rent and who
22 contract for such a project with a general contractor or specialty
23 contractors licensed pursuant to this chapter. To qualify for the
24 exemption under this paragraph, the licensed contractors' names and
25 license numbers must be included in all sales documents.

26 7. Architects or engineers who are engaging in their professional
27 practice as defined in chapter 1 of this title and who hire or offer to
28 hire the services of a contractor for preconstruction activities relating
29 to investigation and discovery, including:

30 (a) Subsurface utility location and designation services.

31 (b) Potholing.

32 (c) Drilling for any of the following:

33 (i) Soil samples.

34 (ii) Rock samples.

35 (iii) Pavement samples.

36 (d) Locating existing features of a building or structure,
37 including existing electrical, mechanical, plumbing and structural
38 members.

39 8. A person licensed, certified or registered pursuant to title 3,
40 chapter 20 or a person working under the direct supervision of a person
41 certified or qualified pursuant to title 3, chapter 20 to the extent the
42 person is engaged in pest management.

43 9. Except as provided in subsection D of this section, the sale or
44 installation of finished products, materials or articles of merchandise
45 that are not fabricated into and do not become a permanent fixed part of
46 the structure. This exemption does not apply if a local building permit
47 is required, if the removal of the finished product, material or article

1 of merchandise causes damage to the structure or renders the structure
2 unfit for its intended use or if the total price of the finished product,
3 material or article of merchandise is more than \$1,000, including labor
4 but excluding any electrical fixture or appliance that meets all of the
5 following:

6 (a) Was designed by the manufacturer.

7 (b) Is unaltered, unchanged or unmodified by any person.

8 (c) Can be plugged into a common electrical outlet.

9 10. Employees of the owners of condominiums, townhouses,
10 cooperative units or apartment complexes of four units or less or the
11 owners' management agent or employees of the management agent repairing or
12 maintaining structures owned by them.

13 11. Any person who engages in the activities regulated by this
14 chapter, as an employee of an exempt property owner or as an employee with
15 wages as the person's sole compensation.

16 12. A surety company or companies that are authorized to transact
17 business in this state and that undertake to complete a contract on which
18 they issued a performance or completion bond, if construction work is
19 performed by duly licensed contractors.

20 13. Insurance companies that are authorized to transact business in
21 this state and that undertake to perform repairs resulting from casualty
22 losses pursuant to the provisions of a policy, if construction work is
23 performed by duly licensed contractors.

24 14. Except as provided in subsection D of this section, any person
25 other than a licensed contractor engaging in any work or operation on one
26 undertaking or project by one or more contracts, for which the aggregate
27 contract price is less than \$1,000, including labor, materials and all
28 other items, but excluding any electrical fixture or appliance that was
29 designed by the manufacturer, that is unaltered, unchanged or unmodified
30 by any person and that can be plugged into a common electrical
31 outlet. The work or operations that are exempt under this paragraph must
32 be of a casual or minor nature. This exemption does not apply:

33 (a) In any case in which the performance of the work requires a
34 local building permit.

35 (b) In any case in which the work or construction is only a part of
36 a larger or major operation, whether undertaken by the same or a different
37 contractor, or in which a division of the operation is made in contracts
38 of amounts less than \$1,000, excluding any electrical fixture or appliance
39 that was designed by the manufacturer, that is unaltered, unchanged or
40 unmodified by any person and that can be plugged into a common electrical
41 outlet.

42 (c) To a person who utilizes any form of advertising to the public
43 in which the person's unlicensed status is not disclosed by including the
44 words "not a licensed contractor" in the advertisement.

45 15. A person who is licensed, certified or registered pursuant to
46 title 41, chapter 37, article 4 and who is not otherwise required to be
47 licensed under this chapter or an employee of such person.

1 16. A person who functions as a gardener by performing lawn, garden,
2 shrub and tree maintenance.

3 17. Alarm agents as defined in section 32-101.

4 B. A person who is licensed to perform work in a particular trade
5 pursuant to this chapter is not required to obtain and maintain a separate
6 license for mechanical or structural service work performed within the
7 scope of such trade by such person.

8 C. Any person who does not have an exemption from licensure
9 pursuant to subsection A, paragraph 14, subdivision (c) of this section is
10 subject to prosecution for a violation of section 44-1522. The attorney
11 general may investigate the act or practice and take appropriate action
12 pursuant to title 44, chapter 10, article 7.

13 D. The exemptions from licensure pursuant to subsection A,
14 paragraphs 4, 9 and 14 of this section do not apply to ~~either~~ ANY of the
15 following:

16 1. All fire safety and mechanical, electrical and plumbing work
17 that is done in connection with fire safety installation and fire safety
18 maintenance and repair. For the purposes of this paragraph, "fire safety
19 installation" means hardwired or interconnected smoke alarms and fire
20 sprinklers and does not include an individual device that is attached by a
21 nail, screw or other fastening device to the frame or foundation of any
22 residential unit. For the purposes of this paragraph, fire safety
23 maintenance and repair does not include routine work that is conducted by
24 an employee of an apartment or condominium complex and that is incidental
25 to the fire safety equipment.

26 2. All work that is done, including the installation, maintenance
27 and repair of devices, appliances or equipment, AND that involves the
28 connecting to any supply of natural gas, propane or other petroleum or
29 gaseous fuel. Nothing in this paragraph impacts the effect of section
30 36-1624.01.

31 3. ALL WORK DONE BY AN ELEVATOR CONTRACTOR OR ELEVATOR MECHANIC,
32 INCLUDING THE INSTALLATION, SERVICE, TESTING AND REPAIR OF ELEVATORS AND
33 ELEVATOR EQUIPMENT. THE INSTALLATION, SERVICE, TESTING AND REPAIR OF
34 ELEVATORS AND ELEVATOR EQUIPMENT DOES NOT INCLUDE ROUTINE WORK THAT IS
35 CONDUCTED BY AN EMPLOYEE OF AN ELEVATOR CONTRACTOR AND THAT DOES NOT
36 INVOLVE THE ACTUAL PHYSICAL INSTALLATION, MAINTENANCE, TESTING OR REPAIR
37 OF ELEVATORS OR ELEVATOR EQUIPMENT.

38 E. A joint venture or other combination of persons, firms,
39 partnerships, corporations, associations or other organizations is not
40 required to obtain a separate contractor's license in its own name if all
41 of the following apply:

42 1. At least one member of the joint venture or combination holds a
43 contractor's license in good standing with the registrar.

44 2. Each member of the joint venture or combination that acts as a
45 contractor holds a license in good standing with the registrar.

1 3. Each licensed member of the joint venture or combination only
2 performs work within the scope of that member's contractor's license or
3 licenses.

4 Sec. 11. Retention of members

5 Notwithstanding section 32-102, Arizona Revised Statutes, as amended
6 by this act, all persons serving as members of the state board of
7 technical registration on the effective date of this act may continue to
8 serve until the expiration of their normal terms. All subsequent
9 appointments shall be as prescribed by statute."

10 Amend title to conform

And, as so amended, it do pass

WALT BLACKMAN
CHAIRMAN

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12:41 PM

C: JR

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